

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM A.D. 2019

PRESENTS: HIS HONOR FRANCIS S. KORKPOR, Sr.....CHIEF JUSTICE
PRESENTS: HER HONOR JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
PRESENTS: HER HONOR SIE-A-NYENE G. YUOH.....ASSOCIATE JUSTICE
PRESENTS: HIS HONOR JOSEPH N. NAGBEASSOCIATE JUSTICE
PRESENTS: HIS HONOR YUSSIF D. KABAASSOCIATE JUSTICE

IN RE: JUDICIAL INQUIRY COMMISSSION (JIC) REPORT: COMPLAINT OF L.
SWANSEY FALLAH AGAINST HIS HONOR RICHARD S. KLAH, ASSOCIATE
JUDGE, COMMERCIAL COURT OF LIBERIA

HEARD: July 16, 2019

DECIDED: August 16, 2019

MADAM JUSTICE WOLOKOLIE DELIVERED THE OPINION OF THE COURT

On March 27, 2017, Mr. L. Swansey Fallah, General Manager of the Kingdom Business, Inc., submitted to the Office of the Chief Justice a letter of complaint against His Honor Richard S. Klah, Associate Judge, Commercial Court of Liberia. The complainant in this letter gave a lengthy narrative of alleged chains of dealings between him and the Judge, from which he was seriously injured by the conduct of the respondent Judge. The complainant pleaded with the Supreme Court for its intervention in regard to the grievance he alleged to have been meted out against him by Judge Klah.

We deem it necessary to reproduce the letter herein so that the magnitude of the complaint is fully grasped, and therefore quote the said complaint verbatim as follows:

"March 27, 2017

*Kingdom Business Inc.
King Gray, Paynesville City
Montserrado County
Republic of Liberia
Tel: 0886600850/0775922063*

*His Hon. Justice Francis Korkpor
Chief Justice, Supreme Court of Liberia
Temple of Justice
Monrovia, Liberia*

May It Please Your Honor:

Subject: LETTER OF COMPLAINT

We present our compliments and herewith submit this complaint to your office against Judge Richard S. Klah, Associate Judge of the Commercial Court, Temple of Justice.

That on December 24, 2015, during the night hours, I, Swansey Fallah, General Manager of Kingdom Business, Inc., received a strange call from a man who later introduced himself as Judge Klah of the Commercial Court. After his self-introduction, Judge Klah informed me that his friend Mousa Abdul Karim had taken my complaint to him; that I and my company was indebted to him in the amount of US\$ 200,500.00 and that he Judge Klah is urging me to pay such money and save myself from trouble. He then instructed me to locate him at his Office at the Temple of Justice for a conference with Mousa Abdul Karim and discuss payment plans.

During the communication on the telephone, I told Judge Klah that we were not indebted to Mousa and that I will come to him to explain the details of the transaction between us and Mousa after the Christmas Season. I will later present to you a call log from Lone Star GSM to prove the occurrence of this communication between I and Judge Klah.

After the Christmas Season, I went to the Temple of Justice and I was told that Judge Klah had travelled. After some time, I followed up again and I met with Judge Klah in his office at the Commercial Court.

During our meeting, I took time and explained in details to Judge Klah the business transaction that took place between me and Mousa. Judge Klah still maintained that I pay to Mousa at least US\$150,000.00 and that he will ask Mousa to abandon the rest of the money. I told Judge Klah frankly that we are not indebted to Mousa but rather Mousa was indebted to us according to business transactions that occurred between us.

On January 26, 2016, I was served a writ of arrest with attachment claiming the amount of US\$ 200,500.00 by Mousa and the case was being handled by Judge Chan-Chan Paegar.

On the day that we obtained the required bond and went to the Commercial Court for filing, when my lawyer, Cllr. Lofen Kenneth went to the public defense counsel office to obtain some cash from Atty. Sondah, Judge Klah spotted me standing in the lobby. He Klah called me into his office and asked me if I came for the case between me and Mousa? When I affirmed his question, Judge Klah promised that he would do everything possible to help me in the process during the adjudication since he knew that Mousa was making a false claim. When the case was then formally called for hearing on Tuesday, May 3, 2016, I was shocked to see that the case was assigned before Judge Klah.

The Lord Justice, after the first day of sitting, Judge Klah called me again and requested that we give him the amount of US\$5,000.00 with the promise that he will dismiss the case because he knew surely that Mousa was accusing us falsely. Judge Klah warned me not to disclose the money transaction between me and him to my lawyer.

By paying the US\$5,000.00 to Judge Klah in his office, introduced the beginning of my troubles in the hand of Judge Klah. After that first transaction, Judge Klah began to extort money from me on the weekly basis of not less than US\$500.00.

Your Lord Justice, for the period March 2016-October 2016, Judge Richard S. Klah demanded us on a weekly basis to pay for his home expenses, school fees, car repairs, medical bills, bereavement funds, National Bar Conference fees and etc., unabated.

Furthermore, in order to exert an undue pressure on us and our business, Judge Klah decided to issue garnishment orders on our clients to deny us of payments due us for completed projects and ongoing projects/contracts.

By these actions, Judge Klah demanded that I pay to him US\$1,000.00 before he can issue a vacating order on each garnishment order that he issued on our clients, the Welthungerhilfe a German NGO, Ministry of Finance and Development Planning, and the Ministry of Agriculture. By this action we paid to Judge Klah US\$3,000.00 in total. See attached copy of garnishment orders issued by Judge Klah on our clients while the trial was ongoing, notwithstanding that the appropriate bond was filed. These garnishment orders issued by Judge Klah not only stalled the implementation of the ongoing projects but also killed totally our business relationship with those clients that we have suffered to build in the past many years.

In the month of October, 2016, before Judge Klah could make his ruling into the case, he demanded that I give him the amount of US\$6,000.00 that he needed to share this money among Judges Chan-Chan Paegar, Eva Mappy Morgan and himself Richard S. Klah; that each will take US\$2,000.00 as case closing fees.

Judge Klah advised me that as a business man I did not need to be dragged court all day and he assured me that the verdict had already been made in my favor and indeed I was free from Mousa's allegations. Again, I did pay the money after consulting myself, not because of fear of guilt but we wanted to avoid long court proceedings and endless expenditure as he was demanding money from us weekly whether we had it or not.

Sir, from the commencement of the case on January 26, 2016, up to its conclusion in October 2016, the total money that I gave to Judge Richard Klah per his requests amounted to US\$19,700.00, not mentioning other court expenditure, bond fees and legal fees.

Sir, to our shock and total dismay, and at the conclusion of the trial, Judge Klah brought down a guilty judgment against us that has no magnitude of truth and facts as you see attached copy of the bill of exceptions filed by our lawyer.

Now and at the present, Judge Klah has succeeded in destroying our business financially and psychologically and that we are now a dead

business entity. Your Honor, presently Judge Klah is now hunting us and chasing us to pay US\$228,000.00 to him and his Lebanese friend, money that we have not received from any of our business transactions since our establishment, by issuing an execution order and instructing the court's sheriff that we should go and meet with him, Judge Klah, without even a Bill of Cost being served on our lawyer or even him giving copy of the ruling made by the court. I was only served copy of the ruling after I was arrested on execution order, he came in and was served the ruling thereafter, he filed immediately the Bill of Exception herein attached.

Sir, let me inform you that Judge Richard S. Klah and the Lebanese man, Mousa Abdul Karim had been in communication and arranging this plot against us long before the filing of the complaint by the Lebanese man Mousa Abdul Karim. In order to authenticate and verify this information, we advise that you request the GSM companies Lone Star and Cellcom to produce the call logs of these two (2) gentlemen for the period covering June 1, 2015 to December 31, 2015. By this Your Honor, you will find out that these gentlemen have been friends long before the commencement of the case in the Commercial Court on January 26, 2016. Their numbers are as follows: Judge Richard S. Klah, Lone Star 0886633581, Cellcom 0777533581, Mousa Abdul Karim, Lone Star 0886116666, Cellcom 07765312249.

Therefore, Your Honor, we appeal for your intervention to call to a halt any further proceedings in the case, investigate our complaint and call for an audit of the case and the business transactions that existed between us and the Lebanese national Mousa Abdul Karim, as well as order Judge Klah to pay back all the money he took from me. Sir, your urgent intervention is highly solicited to save our lives and business as we are now experiencing trauma.

I shall provide you the call logs from Lone Star Cell and Cellcom as well as copy of the text sent him after the judgment, demanding the money given him, to prove that there was constant communication between Judge Klah and me.

Sincerely yours,

*L. Swansey Fallah
GENERAL MANAGER "*

The Chief Justice, His Honor Francis S. Korkpor, Sr., upon receipt of the complaint, transmitted same under a cover letter to the Judicial Inquiry Commission (JIC), requesting an investigation into the matter, especially as the content thereof set forth grave allegations of ethical misconduct against a judge.

As per the practice and procedure followed by the Commission, and consistent with the due process requirements laid down in the Constitution, the then Chairperson of the Commission, Associate Justice Sie-A-Nyene G. Yuoh, ordered

that the respondent Judge be informed of the complaint filed against him and that he files his response to the allegations contained in the complaint.

The Judge, upon receipt of the complaint forwarded to him by the JIC, sent in his written response. In his response, he acknowledged that the complainant was a party in a case which he had heard and decided against the complainant but he denied the allegations made against him, denying that he ever made contact with the complainant, L. Swansey Fallah, or the plaintiff, Mousa Abdul Karim, outside of the hearing of the case. The Judge also denied calling either of them via telephone or vice versa, or that he received or exchanged text messages with either of the parties.

The full complaint having been quoted above, we also quote below the 20 count response of the Judge to the complaint written against him, revealing the rigorous challenge he mounted to the allegations made against him in the complaint. His response to the complaint reads thus:

"In Re: The Complaint of Mr. L. Swansey Fallah of Kingdom Business, Inc. against Judge Richard Klah.

I, Richard S. Klah Sr., Associate Judge of the Commercial Court, wish to make the following clarifications for the record to the allegations of my misconduct referencing the claims of Mr. Swansey Fallah, General Manager of Kingdom Business, Inc, to the effect that I have received a total amount of Nineteen Thousand Seven Hundred United States Dollars (US\$ 19,700.00) at various times from December 24, 2015 up to October-2016. I hereby deny all the false assertions and allegations made by Mr. Swansey Fallah in his letter of complaint, dated March 17, 2017, to the Chief Justice of the Honorable Supreme Court. My specific comments to each of the allegations are contained herein below:

1. Paragraph One (1) of the complaint raises no traversable issue and deserves no specific comment from me.

2. As to paragraph Two (2) of the complaint alleging a conversation occurring between Mr. Fallah and me during the night of December 24, 2015 bordering on his alleged indebtedness to Mr. Mousa Abdul Karim, I submit that this allegation is false, untrue and without any basis. I did not talk to Mr. Fallah as he claimed because I did not know Mr. Fallah or Mr. Mousa Abdul Karim; had never met either of them and never had any such discussion with Mr. Fallah concerning his alleged indebtedness to Mr. Abdul Karim. Further, I maintain that I never had any prior knowledge or relationship with either of the parties and that I could not have held such a conversation as claimed on December 24, 2015 or on any subsequent date. For the record, the debt action was filed with the Commercial Court on January 20, 2016, when I was out of the Country; it is, therefore absolutely false, misleading and a misrepresentation of the facts that I invited Mr. Fallah to my office for a conference concerning his alleged indebtedness to Mr. Abdul Karim. Attached

herewith is a copy of my passport relative to my departure and return information as Exhibit "1".

3. As to paragraph Three (3) of the complaint, I maintain that I never had any such conversation with Mr. Fallah on the night of December 24, 2015. I deny ever talking to him, discussing his alleged indebtedness and never invited him to my office at any time to meet with me. This is another inconsistency because I did not know Mr. Fallah on December 24, 2015; never invited him to my office and the allegation of a conversation between us on December 24, 2015, is false, a total fabrication and something made up by Mr. Fallah, with a sinister motive.

4. As to Paragraph Four (4), the allegation of a meeting with Mr. Fallah in my office is denied because of its falsity; I confirm that I did not know Mr. Fallah, had never interacted with him before and did not know Mr. Mousa Abdul Karim either on December 24, 2015 or afterwards prior to the filing of the debt action; this allegation is false, untrue and a diabolical lie.

5. Paragraph Five (5) of the complaint is denied for its falsehood because I did not know either Mr. Fallah or Mr. Abdul Karim prior to the filing of the debt action with the Commercial Court. I maintain that I did not hold any such meeting with Mr. Fallah at my office during which I allegedly prevailed on him to settle by paying US\$150,000.00 to Mr. Mousa Abdul Karim. Assuming that, such a meeting or discussion took place between Mr. Fallah and [me] without admitting it as true, when did it happen when I was not in the Country when this case was filed and he was being represented by his lawyers? This is another of his lies because I did not know Mr. Fallah at that time, had never interacted with him before and never met him prior to the filing of the case; his insinuations are all concocted lies that lack any truthfulness.

6. As to Paragraph Six (6), I confirm that when the case was filed on January 26, 2016, I was out of the Country and I am not aware that the case was previously being handled by Judge Chan-Chan Paegar before being assigned to me. It may be true that Judge Paegar signed the Judge's Order and the Writ of Attachment on January 20, 2016; it does not mean that the case was assigned to him before being assigned to me subsequently as alleged. The certified record of court confirms that the Writ of Attachment was served on Mr. Fallah on January 20, 2016, during my absence from the Country and the case has been assigned to me since February 8, 2016. I categorically deny knowing Mr. Fallah or discussing anything with him at all prior to the filing of the case and its subsequent assignment to me.

7. As to Paragraph Seven (7) where Mr. Fallah claimed that he was standing in the lobby/hallway, while his lawyer went upstairs to the Public Defense Office to see Atty. Moses Sondah on the day they were filing their bond and I allegedly invited him into my office to talk with him, again this is completely false, misleading and a gross misrepresentation of the facts. The certified record confirms that the

bond was filed on February 3, 2016 when I was out of the Country; I returned to Liberia on February 6, 2016, and it is absolutely impossible for me to be in the United States while holding a meeting with Mr. Fallah at my office in Liberia which is yet another inconsistency. Please refer to my passport information contained in Exhibit. '1' concerning this unfounded allegation as a lie.

8. As to Paragraph Eight (8) of the complaint concerning the first day sitting after which I allegedly called him and requested the amount of US\$5,000.00 to dismiss the action, this is another falsehood. It will be unethical to talk to Mr. Fallah knowing that he is represented by counsel in this case. For the record, I presided over the first pre-trial conference on Monday, February 22, 2016, and both counsels were present; I did not know Mr. Fallah, never spoke with him or invited him to my office as alleged. I confirm that I never held such a discussion with Mr. Fallah, never requested US\$5,000.00 from him to dismiss the action. It is, therefore, preposterous for Mr. Fallah to say that I requested money from him and told him not to disclose the money transaction to his lawyer as alleged. Please see the Minutes of Court for February 22, 2016 sitting as Exhibit '2'.

9. As to paragraph Nine (9) of the complaint, I cannot recall ever receiving money from Mr. Fallah in the amount of US\$5,000.00 at any time nor requesting or receiving US\$ 500.00 weekly as alleged. Assuming for the sake of argument without admitting to the truthfulness of this allegation, the weekly payment of US \$ 500.00 from January 26, 2016 to October, 2016 for a total of forty-five (45) weeks would amount to US\$ 22,500.00; how could Mr. Fallah claim he paid me US\$5,000.00 to dismiss the action and continued to pay such an amount when he knew that he did not owe anything to the other party? This is another inconsistency that is absolutely false, untrue and a total lie.

10. In Paragraph Ten (10) of the complaint, Mr. Fallah claimed that I demanded money from him to cover my home expenses, school fees, car repairs, medical bills, bereavement funds, National Bar fees, etc., between the period March, 2016 to October, 2016. This is another false, misleading and shameless lie. How can one imagine Mr. Fallah, who claimed during our alleged conversation on the night of December 24, 2015 that he did not owe anything to his partner, to keep assuming the responsibilities of a total stranger like me as if I were his ward when I am gainfully employed? I deny this shameless lie and inconsistency and confirm that I never requested nor received a dime from Mr. Fallah.

11. As to the false allegation contained in Paragraph Eleven (11) that garnishment orders were issued to Mr. Fallah's clients for the purpose of denying him payments due him for completed projects and on-going projects, same is patently untrue. For the record, plaintiff's counsel requested these garnishment orders in order to secure the interest of his client. It is, therefore, outrageous to insinuate that the court issued garnishment orders for the sole purpose of harassing Mr. Fallah (See copy of the petition for a writ of garnishment dated May 24, 2016 herewith attached for your easy reference as Exhibit "3").

12.As to Paragraph Twelve (12) of the complaint, I deny this baseless and unfounded allegation of requesting and receiving from Mr. Fallah the sum of US\$3,000.00 to lift the garnishment orders that were allegedly issued to harass him. This is another ridiculous falsehood made just to besmear my good name and reputation. Mr. Fallah had somehow received payment from the Ministry of Finance in spite of the garnishment order. Additionally, German Agro Action, now Welthungerhilfe filed a Bill of Information thru its lawyers that it was not a party to the suit for which the garnishment order was vacated. Therefore, the allegation of the payment of Three Thousand United States Dollars (US\$3,000.00) to lift the garnishment orders is false and untrue and I confirm that I never requested or received a dime from Mr. Fallah in this regard. Please see copies of his lawyer's communication and bill of information filed by another lawyer for your easy reference in bulk as Exhibit "4".

13.As to Paragraph Thirteen (13), the allegation that I demanded the amount of US\$ 6,000.00 as case closing fees to be shared with my colleagues, Judge Eva Mappy Morgan and Judge Chan-Chan Paegar, is totally false. Reference to the alleged conversation on December 24, 2015 where Mr. Fallah claimed he did not owe his partner anything, this is another inconsistency. During his direct examination by his own counsel, he admitted in open court in his testimony that he withheld a share of the profits due the plaintiff because the said plaintiff could not account for some project funds. I hereby confirm and affirm that at no time did I request nor receive any money from Mr. Fallah to influence my decision in the case under the pretext that I would have shared some with my colleagues. This is another diabolical lie. Please see attached copy of the Minutes of Court, August 1, 2016, lines 160-169 as Exhibit "5".

14.As to Paragraph Fourteen (14), the allegation that I advised Mr. Fallah and assured him that I would render a favorable judgment in his favor is a complete lie, a fabrication, and an inconsistency that lacks any iota of truth. I confirm that I never held any such conversation, never solicited or received any money from Mr. Fallah for the purpose of influencing my decision and rendering a decision in his favor. It does not make any sense for me to assure Mr. Fallah of any judgment in his favor. This outrageous falsehood is denied as it does not have any basis.

15.As to Paragraph Fifteen (15), I deny ever receiving any amount of money from Mr. Fallah including the alleged US\$19,700.00 mentioned therein for the period January 26, 2016 up to October 2016. For the record, I did not request nor receive any money from Mr. Fallah at any time during the proceedings of the debt action and this unfounded allegation is completely false.

16.As to the allegation contained in Paragraph Sixteen (16) of the complaint that I rendered final decision not supported by law nor the facts in the case, it is laughable because my decision is supported by law and the facts as confirmed in Mr. Fallah's own admission that he still has in his possession some of the share of profits due the plaintiff; I maintain that my decision was fair, impartial and supported both by law and the facts of the case.

17. As to Paragraph Seventeen (17) of the complaint, the allegation of impropriety in the handling of the case is strongly denied for the inconsistency contained therein, Mr. Fallah's counsel excepted to the final judgment in open court and announced an appeal to the Honorable Supreme Court on October 24, 2016. He subsequently filed a motion to rescind court's ruling on October 25, 2016. The motion was assigned for hearing on November 8, 2016 and the sheriff's returns showed that movant's counsel was not served because his office was closed; therefore, another assignment was issued on November 11, 2016 for the hearing of the motion on November 16, 2016 and both counsels argued their sides before court and ruling was reserved pending the issuance of a regular notice of assignment. Ruling on the motion to rescind was scheduled for November 18, 2016 and the court ruled denying the motion to rescind on legal grounds; however, the movant/defendant failed to perfect his appeal. More besides, two (2) post judgment conferences were held with both counsels when Mr. Fallah's counsel refused to tax the bill of cost and he pleaded for time to settle twenty five percent (25) of the judgment sum. Plaintiff's counsel interposed no objection to the request even up to the time I became sick and was unable to report to work due to my illness. It is absolutely false and misleading that Mr. Fallah was not served with a copy of the ruling prior to the issuance of the writ of execution because his lawyer, Atty. Moses Sondah was present in court when the ruling was made, excepted to the ruling and announced an appeal and received a copy of the ruling. Moreover, his counsel subsequently filed a motion to rescind which was heard and denied according to the Minutes of Court. Please see copy of court minutes of Thursday, October 20, 2016 as Exhibit "6".

18. As to Paragraph Eighteen (18) of the complaint, I deny ever knowing Mr. Mousa Abdul Karim between the period June 1, 2015 to December 31, 2015, neither was I in constant communication with him as alleged; I further deny any prior relationship existed between us to the extent that we were friends as alleged. I maintain that I did not know either Mr. Fallah or Mr. Abdul Karim during the referenced period alluded to in Paragraph Eighteen (18) of the complaint.

19. As to Paragraph Nineteen (19) of the complaint, I deny ever requesting or receiving any money from Mr. Fallah as alleged and believe that this falsehood is intended to besmear my reputation. Moreover, the inconsistencies, falsehoods and unfounded allegations made by Mr. Fallah throughout his complaint cannot stand against the facts and I confirm that I did not request any money and Mr. Fallah did not give me any money to influence decision in his favor. (Please see the attached Minutes of Court in the referenced case).

20. Finally, I hereby deny all and singular the allegations contained in Mr. Fallah's complaint which were not specifically traversed herein and confirm the truthfulness of Counts One (1) through Nineteen (19) of this response.

Respectfully submitted on this 31st Day of May, 2017
Richard S. Klah, Sr
Associate Judge, Commercial Court

*SWORN AND SUBSCRIBED TO BEFORE
THIS 31ST DAY OF MAY AD 2017
ENOCH S. GARLAWOLU - NOTARY PUBLIC "*

The Judge having responded to the complaint, the investigation was scheduled by Associate Justice Philip A.Z. Banks, III, who had succeeded Justice Yuoh as Chairman of the Judicial Inquiry Commission (JIC). Both parties were invited to appear at a date and time for the hearing and encouraged to bring witnesses/evidence, if any, to confirm their allegations and denials.

The parties having appeared for the investigation, the complainant was firstly accorded the floor to state verbally the nature and substance of his complaint. In that regard, the complainant essentially reiterated the same account he had transcribed in his letter of complaint filed with the Office of the Chief Justice. He reiterated that on December 24, 2015, he received a strange call from a person who introduced himself as Judge Klah of the Commercial Court stating that there was a complaint before him (Judge Klah) against Mr. Fallah, filed by the complainant's friend, Mousa Abdul Karim, to the effect that he (Mr. Fallah) owed Mr. Abdul Karim some money; he then told the Judge that he did not owe Mousa Karim any money and offered to go to the court to see the Judge to explain his side of the story; the Judge invited him to his office and gave him directions; that on the day of their agreed meeting, he came to the Commercial Court and met the caller, Judge Richard Klah in person; that after providing clarity to the respondent Judge on the issue of the alleged debt claimed by Mr. Mousa Abdul Karim, the Judge maintained that he pay Mr. Karim US\$150,000.00 (ONE HUNDRED AND FIFTY THOUSAND UNITED STATES DOLLARS), he refused and Mousa Abdul Karim subsequently filed a debt action against him in the Commercial Court in regard to the same subject matter; he found out that the case was assigned for hearing before Judge Klah.

Explaining further, the complainant avowed that during the course of the proceedings, the Judge made several contacts with him and demanded money from him in return for a favorable judgment; that taking the Judge at his word, he commenced giving him certain sums as per his frequent requests made, and this included a payment of US\$6,000 (SIX THOUSAND UNITED STATES DOLLARS) which the Judge said he would distribute with his colleagues of the Commercial Court at Two Thousand United States Dollars each. The complainant stated that the total amount given to Judge Klah as per his various requests to him amounted to Nineteen Thousand Seven Hundred United States Dollars (US\$19,700.00); that he was

disappointed when at the conclusion of the case the Judge entered judgment against him; that when the Judge defaulted on his promise and ruled against him (complainant) in the case, it was then that he (complainant) demanded the Judge to retribute the various amounts that he requested and was paid to him. The amount, the complainant said totaled US\$19,700.00 (NINETEEN THOUSAND SEVEN HUNDRED UNITED STATES DOLLARS). The complainant presented a hand written note of withdrawals made from his bank account and various amounts said to have been intermittently paid to the Judge when requested. The complaint against the Judge, Mr. Fallah stated, was provoked by the refusal and failure of Judge Klah to honor his request for restitution. Mr. Fallah concluded his oral submission with a request to the Commission for appropriate remedy to his grievance against the Judge.

Following the complainant's narrative, Judge Klah, with leave of the investigation, cross-examined the complainant. The Judge posed several questions to the complainant in connection to the facts and circumstances that occasioned the complaint before the Commercial Court and which involved the complainant, and also the grave allegations of bribery against him, with the object of impeaching the complainant's allegation and credibility. In his response, the complainant maintained and even amplified the allegations outlined in his written complaint and his sworn testimony given before the investigation. He reiterated that he and the Respondent Judge had made numerous telephone calls to each other in connection with the case and maintained that he had paid to the Judge several sums of money so that the latter could rule in his favor.

The complainant having rested with the oral presentation of his complaint and answers to questions posed to him by the members of the Commission, Judge Klah was also accorded the floor to orally present his defense. The Judge essentially restated the denials made in his written response to the complaint, denying that he ever received money from the complainant to influence his decision in the debt case presided over by him and involving the complainant and Mr. Mousa Abdul Karim. The judge further denied that he made phone calls or sent messages communicating with the parties in the case. He stated to the Commission that if it found evidence of any communication having been made between him and either the complainant or the plaintiff, Mousa Abdul Karim, in the debt case heard by him, then he, the Judge, was guilty of the allegations as contained in the complainant's complaint.

The complainant was also given the opportunity to ask the Judge questions in regard to his denial of the complaint, following which the Judge rested and the matter was suspended for continuation to a further date.

The Commission having heard from both parties, it determined that the credibility of both the complainant and the respondent Judge substantially rested on whether the Judge in fact had personally communicated with either of the two parties to the case by mobile phone; that the bank statements of withdrawals and handwritten notes of payments made by the complainant to the Judge along with a three page records from the Lonestar Cell (MTN) Company reflecting telephone calls from the Judge to the complainant and Mr. Karim could not be given credence by the Commission in its investigation as they was self-serving; that a subpoena of the call log from the mobile phone company was indispensable to the truth of the allegation made by the complainant.

Associate Justice Philip A.Z. Banks, III, on behalf of the Commission then wrote to the Lonestar Cell (MTN) Company, sending forward the numbers of the complainant, the Judge and Mr. Karim, requesting Lonestar Cell (MTN) to produce, if any, the record of calls and text messages to and from the parties for the period December 1, 2015 up to and including December 31, 2017. Justice Banks' letter to the Lonestar Cell (MTN) Company reads:

"April 30, 2018

*The Managing Director
Lonestar Cell Communication Corporation
Congo Town
Monrovia, Liberia*

Dear Sir/Madam:

We present our compliments and hereby request the management of Lonestar Cell Communication Corporation to produce the original copies of the cellphone records on the calls and text messages to and from the below listed numbers, for the period December 1, 2015 up to and including December 31, 2017, and submit same to the Offices of the Judicial Inquiry Commission (JIC) of the Supreme Court of Liberia, 3rd floor, Temple of Justice, Capitol Hill, Monrovia, Liberia, on or before 12 p.m. Friday, May 4, 2018.

The numbers are:

- 1 . 0886600850*
- 2 . 0886633581*
- 3 . 0886116666*

The Judicial Inquiry Commission (JIC) is an organ of the Supreme Court, clothed with the exclusive power and authority to receive and investigate complaints against judges of courts of record and non-record in the Republic of Liberia, for violation of any provision of the Judicial Canons for the Moral and Ethical Conduct of Judges.

The Commission is currently investigating a complaint filed with the Office of the Chief Justice, His Honor Francis S. Korkpor, Sr., in connection with calls and text messages emanating from the cellphone numbers mentioned above.

For so doing, this shall constitute your sufficient authority.

Kind regards.

Sincerely yours,

*His Honor Philip A. Z. Banks, III
ASSOCIATE JUSTICE, SUPREME COURT OF LIRERIA
CHAIRMAN, JUDICIAL INQUIRY COMMISSION (JIC)*

After much persistence by the JIC, Lonestar Cell (MTN) eventually provided the Commission with a record of calls and messages amongst the Judge and the parties in the case involving the complainant. The call logs sent did not show calls or messages amongst the parties from December 1, 2015 up to March 17, 2016; Lonestar Cell(MTN) said it had difficulty retrieving call records made far back. It however brought records reflecting calls and messages made by the parties to Judge Klah and from Judge Klah to them during the period March 18, 2016 to December 20, 2017. We calculated that during this period, FIFTEEN (15) calls were made from Judge Klah's cellphone number (0886633581) to the complainant's number (0886600850); NINE (9) calls made from the complainant to the respondent Judge; SIX (6) SMS (text messages) from the respondent Judge to the complainant; NINE (9) SMS from the complainant to the respondent Judge. The record also reveal EIGHTEEN (18) calls were made from the respondent Judge to Mousa Abdul Karim, and FIFTY (50) calls from Karim to the respondent Judge; SEVEN (7) SMS from the Judge to Karim and TWELVE (12) SMS from Karim to the Judge.

Upon receipt of this record from Lonestar Cell (MTN), the Commission resumed the investigation and confronted Judge Klah with the record from the phone company. When asked by the investigation for his reaction to the appalling revelations unearthed by the call logs, whether the records from the cell phone company was correct or not, the respondent Judge Klah then admitted to the communication but claimed that he called the complainant only to warn him to desist from calling him.

The Commission concluded its investigation and submitted a report to the Supreme Court. Excerpt of the findings and recommendations made in the report by the Commission are quoted herein below:

"... While the Commission recognizes and appreciates this belated effort of the Respondent Judge to probably right his wrong, this action on his part does not cure the effect of the gross misconduct demonstrated by him in total disregard for the code of ethics governing the honorable office which he occupies. The Commission wondered why the respondent Judge believed it important to make false statements in his response, and moreover make false statements under oath at the hearing before the Commission, since as a matter of policy, witnesses are required to take an oath and swear to the Bible (for Christians) that the testimony given is the truth, the whole truth and nothing but the truth. The Commission was given the clear impression that the respondent Judge did not expect or foresee that the Commission would have subpoenaed the records of the cell phone companies to ascertain who, of the two major witnesses, the complainant and the respondent Judge, was telling the truth. The documents from Lonestar Cell (MTN) Phone Company revealed that the respondent Judge was not truthful to the Commission; that he did in fact make many telephone calls to the complainant and verse versa. This revelation shows and gives credibility to the allegations made by the complainant and refuted the denials made by the respondent Judge.

We do not see that there was any reason for the respondent Judge to have lied to the Commission under oath and in his response unless he was guilty of the allegations levied against him. We are of the opinion that he must have had serious motive for denying that there were never any telephone communications between him and the complainant and the plaintiff, Mousa Abdul Karim, when he knew that there were such communications.

The foregoing, coupled with the evidence, oral and documentary made before the Commission, leaves the Commission with the conclusion that the complainant did make payments to the respondent Judge. The task of the Commission is fact-finding and it owes the parties and the law the obligation to inquire into every allegation made by both the complainant and the respondent Judge. This task the Commission did perform and is satisfied that the respondent Judge did commit acts of misconduct which the law clearly forbids. The Commission finds credibility with the testimony and the evidence, presented by the complainant and therefore concludes that he did make payments to the respondent Judge. While it is difficult to make a determination as to whether the respondent Judge did receive the amount which the complainant

states was delivered to the respondent Judge, the evidence is clear in the mind of the Commission that the respondent Judge did receive amounts from the complainant. The falsehood he told to the Commission militates against his denials of ever demanding or receiving from the complainant the amount mentioned by the complainant. From the testimony of the complainant, which as we have said is credible, we are of the opinion that the complainant did deliver to the respondent Judge the amount claimed by him. We note for the record our vehement disapproval of individuals engaging in the illegal act of offering bribes to our Judges or other public officials for favoritism. Notwithstanding, Judges are to uphold the highest standard of integrity at all times. The Commission accordingly determines that the respondent Judge is guilty of the allegations made against him and recommends that he be made to incur the following penalties:

1. That for his receipt of such bribery under the pretext that he would enter a judgment in favor of the complainant, Judge Richard Klah be immediately suspended from serving as a Judge for a period of not less than one (1) year, with the loss of all salaries and benefits, including transport, fuel, scratch cards and the like for the period of his suspension.

2. That for his false statements under oath made both in his response to the complaint and in his testimony before the Commission, which by law is criminal, a further three months suspension be imposed upon the respondent Judge.

The Commission recommends further:

That the Supreme Court sets aside the decision rendered by the respondent Judge in the case below, which this complaint is an outgrowth of, due to the gross unethical breach and proven irregularities associated with the hearing of the said case and remand same for trial anew. "

From the above report of the Commission, this Court notes that members of the Commission were not persuaded by the justification Judge Klah provided after he had been presented with the call logs, stating that he had made the calls to advise the complainant not to make any calls to him; that the overwhelming numbers of calls and text messages from the respondent Judge to the complainant and Mr. Musa Abdul Karim could not have been just to warn them to desist from calling him; that the Commission had reached the conclusion that the evidence adduced at the hearing sufficiently proved the allegations that Judge Klah was involved in bribery as alleged by the complainant, though the Commission could not with certainty confirm the amount the complainant stated that he had given to the Judge. The Commission also reported that the Judge had lied under oath when he firstly

denied ever having phone conversation with either the complainant or Mr. Mousa Abdul Karim.

Consistent with the dictates of due process of law, when the Commission's Report was submitted to the Supreme Court, the Court requested the Clerk to forward a copy of the JIC's report to Judge Klah, ordering him to make his returns to said report, and to appear before the Court *en banc* to put up any defense he might have against the findings of, and recommendations reached by the Commission.

In response to the Court, the respondent Judge filed a nine count returns in which he contended that the complainant's evidence presented before the JIC hearing was concocted with falsehood and inconsistency; that the evidence of the call logs did not prove that he demanded and received bribe as alleged by the complainant. The returns further challenged the findings and recommendations of the JIC, alleging that the outcome reached by the Commission was not supported by the evidence adduced at the hearing; that the report was also plagued with bias and prejudice. The returns filed by the respondent Judge before the Supreme Court is hereunder incorporated into this Opinion:

"... AND NOW COMES YOUR HUMBLE RESPONDENT in the above entitled Petition who takes exception to the findings and recommendations of the JIC and hereby spreads his resistance on the records of this case based on the following factual and legal reasons, to wit:

1. The Respondent says that the findings and recommendations of the Judicial Inquiry Committee's investigative report did not fully address the issue of the alleged misconduct and bribery, especially the Complainant's failure to prove his grave allegations during the investigation;

2. The Complainant did not make any serious attempt to prove any of these serious allegations contained in the complaint throughout the investigation. For instance, the purported meeting at the respondent Judge's Office surrounding the issue of the US\$150,000.00 to settle the matter and his insistence that he did not owe Mousa anything and yet his alleged payment of US\$5,000.00 is inconsistent with the facts; he, Mr. Fallah, was advised not to disclose this money business to his lawyer and his claim of giving the very lawyer the amount of US\$5,000.00 to be given to the respondent Judge in the presence of Mr. Elijah Tamba Bundoo. The Minutes of the Investigation presided over by Justice Yuoh will confirm Mr. Fallah's statement for the record. Another inconsistency is that during the time of the processing of his bond, he was standing outside of the respondent Judge's office when he was invited into

his office is also not true because Mr. Fallah informed the respondent Judge that he never owed Mousa and the Judge subsequently called him on the phone after the first day sitting and requested US\$5,000.00 which was paid in order to dismiss the action, why did he continue to make weekly payments of US\$5,000.00 which was paid throughout the proceedings that lasted for 45 weeks? Again, this allegation was not proven by the complainant. Hence, the findings and recommendations are inconsistent with the settled rule in our jurisdiction that provides that he who makes an allegation must sustain the burden of proof. See Section 25.5 of our Civil Procedure Law (1LCLR 25.5);

3. The respondent Judge further says that the record will confirm that he stated during the Investigation that he returned missed calls, some of which came from either Mr. Fallah or Mr. Abdul Karim long before the subpoenaed phone records and the assertion that he lied under oath is factually not true. The respondent Judge maintains that he was first introduced to Mr. Fallah on June 27, 2016 by Mr. Fallah's lawyer when he, Mr. Fallah, requested his business card and confirms that no telephone conversation ever occurred between them prior to June 27, 2016. The record will clearly show that the exchange of telephone communication occurred thereafter and the respondent Judge did not lie to the Commission in this regard as indicated in the Investigative Report. The issue of telephone communication was made clear that he called back to return missed calls from the complainant from the very beginning of the Investigation which can be confirmed in the minutes of the session presided over by Justice Yuoh and he denies having any motive to lie to the Commission in order to hide his guilt on the matter.

4. The respondent Judge denies the insinuation that he pleaded for mercy as the sole bread-winner of his family when asked concerning the subpoenaed phone record; rather the respondent urged the Commission to consider all the facts, all the allegations, the proof or lack thereof in the complaint and his answer to make its determination in the matter.

5. The respondent Judge strongly believes that the Commission's report is biased, prejudicial and is not supported by the facts and its conclusion that the complainant did make payments to the respondent Judge; while at the same time expressing doubt in determining whether the Respondent Judge did receive the amount which the complainant claimed he delivered to the respondent Judge, creates further doubt and confusion as a basis for setting aside the said report. The complainant did not offer any proof to support the Commission's conclusion that he actually gave the Respondent Judge the money he claimed. The minutes will show that he stated that his lawyer did not know anything about the money business but he contradicted himself by claiming that he gave the same lawyer the amount of US\$5,000.00 to be given to the respondent Judge during the investigation presided over by Justice Yuoh; that he also claimed Mr. Elijah Tamba Bundoo was aware of

this fact and the Investigation requested him to submit copies of his bank statements to prove the withdrawal of the US\$5,000.00, US\$6,000.00 and other amounts allegedly given to the respondent Judge;

6. Respondent further submits that doubt expressed in the investigation report when the Commission said that "while it is difficult to make a determination as to whether the Respondent Judge did receive the amount which the complainant states was delivered to the Respondent Judge", is inconsistent with its later conclusion, "that the Respondent Judge did receive amounts from the complainant", without any factual basis or supporting proof. (See lines 8 to 11 of the second paragraph of the second to the last sheet of the said Report). Another inconsistency can be found in the minutes of the investigation presided over by Justice Yuoh where the Complainant who earlier claimed that his lawyer did not know about the money business when he also claimed that Mr. Elijah Tamba Bundoo was aware of the fact that he gave US\$ 5,000.00 to his lawyer to be delivered to the respondent Judge. Though Justice Yuoh and the Investigation requested him to submit copies of his bank statements to prove the withdrawal of the US\$5,000.00, US\$6,000.00 and other amounts allegedly given to the respondent Judge, the complainant blatantly failed to provide such proof and yet, the Investigation believed that the testimony of the complainant was credible. The conclusion of the Investigation in this regard impinges on the credibility of the entire investigative report and is unconvincing, not supported by any proof and fails to address the essential allegation of bribery leveled against the respondent Judge. Please see handwritten submission of the complainant for your easy reference as the purported proof as Respondent's Exhibit "A", copy of which was given to the respondent during the Investigation.

7. The respondent further says that the conclusions and recommendations of the investigation are not supported by any clear and convincing proof that the complainant actually gave the respondent Judge the amounts he claimed in his very serious allegations during the investigation for which the investigation itself expressed doubts about whether the said judge did receive such amounts. Therefore, the investigation wrongly concluded and based its findings on the exchange of the phone communication as the critical factor in determining the guilt of the accused and that the respondent Judge had lied under oath which alone is not sufficient. This is far from the truth because the record and the minutes of the investigation can clearly confirm that the respondent never, at any time, deny any phone communication between the parties. The respondent has consistently said that he returned missed calls, some of which were from the complainant; this assertion was made in his response to the complainant and during the Investigation prior to the subpoenaed record. Equally important was the allegation made by the complainant that he gave US\$5,000.00, US\$6,000.00, and made other payments, such as

US\$5,000.00 per week to the respondent Judge, none of which was proven. Another inconsistency is the claim that the Complainant gave US\$ 5,000.00 to his lawyer in the presence of Mr. Elijah Tamba Bundoo intended for the respondent against his earlier [statement] that he himself gave the Respondent Judge US\$5,000:00. The purported proof offered by him failed to establish the authenticity of this blatant lie. How could the Investigation find this inconsistency to be credible?

8. The respondent further informs Your Honors and this Honorable Court that a regular trial was conducted, final judgment entered whereby the complainant announced an appeal but did not complete his appeal process, a post-trial motion to rescind was filed, heard and denied, whereby the court proceeded to enforce its judgment for the sale of the property contained in its Indemnity Bond before the complaint of alleged misconduct/bribery was filed. The respondent strongly disagrees with the Investigation and its conclusion for a new trial based on some alleged gross unethical breach and proven irregularities associated with the trial of the case and the Commission fails to point out the specific errors and alleged irregularities committed by the Respondent Judge to justify such a conclusion. Respondent respectfully requests Your Honors and this Honourable Court not to allow such novelty which is a bad precedent that is likely to encourage any would-be party who participated in trial to its conclusion to complain a judge who presided over the trial so that the proceedings can be commenced de novo.

9. Finally, the respondent Judge denies any other wrong conclusion and recommendations contained in the Investigative report that is not specifically traversed herein in these respondent's returns.

WHEREFORE AND IN VIEW OF THE FOREGOING FACTS AND CIRCUMSTANCES, your humble respondent respectfully prays Your Honors and this Honourable Court to set aside the JIC's Investigative Report in which the complainant blatantly failed to sustain the burden of proof, reverse the erroneous findings and conclusions contained in the investigative report which do not establish the guilt of the respondent Judge based on the doubts expressed by the Commission itself, the unfounded insinuations and other wrong conclusions reached by the Investigation and deny the recommendation of ordering a new trial because of the unexplained irregularities and grant unto the respondent such further relief that will be supported by law and the facts in the Misconduct/Bribery case against the respondent. And for these, the respondent so prays."

Consistent with the practice of the Supreme Court in appointing few Counsellors to serve as *amici curiae* at hearings of cases involving ethical transgression of judges and lawyers, the Clerk of Court was instructed to write

to Counsellors Cyril Jones, Necular Y. Edwards and Joyce Reeves Woods, all members of the Supreme Court Bar and in good standing with the Liberian National Bar Association (LNBA), requesting them to serve as *amici curiae in the matter*. The three Counsellors-At-Law, in their timely reply to the Court's request, accepted and prepared a consolidated amicus brief giving their views and advice to the Court on the issues of law presented in the case which we shall refer to later in this Opinion.

At the hearing of the case, the respondent Judge appeared with his counsels who in arguing the respondent's brief filed before the Court, conceded to the portion of the JIC Report which found that the Judge did in fact lie under oath before the JIC in regards to his denial of ever having communicated with the parties to a debt action presided over by him; counsel for the respondent Judge however, refuted that despite the calls made, the JIC's conclusion that the Judge requested and received bribe from the complainant in exchange for a judgment in favor of the complainant was erroneous as the difficulty or impossibility of establishing the contents of the calls created a doubt as to bribery which must operate in favor of the Judge; he referred to the Commission report wherein it stated that though it was established by the call logs that the Judge did communicate with the complainant via cell phone and had received amounts from the complainant, it was difficult to make a determination as to whether the respondent Judge did receive the amount which the complainant stated was delivered to the Judge. The respondent Judge argued that this statement of the JIC is inconsistent with its conclusion "that the Respondent Judge did receive amounts from the complainant, without any factual basis or support".

On the other hand, the amici curiae, both in their brief and the oral submission made during argument before the Court essentially agreed in full with both the findings and recommendations of the JIC. In their brief filed before the Court the amici curiae raised two issues:

1. Whether or not a Judge who communicates with party litigants in order to influence the judge's ruling/decision in the matter that is pending before him is guilty or in violation of the Judicial Canon?
2. Whether or not a judge who makes false statements under oath before the Judicial Inquiry Commission is in violation of the Judicial Canon?

The amici curiae answered the first issue in the affirmative, stating that the Judge should have avoided any interaction with the party litigants that tended to question his impartiality as he holds a position of trust where he is charged

with the responsibility to adjudicate matters coming before his gavel without fear or favor. The *amici curiae* cited Canons Five and Thirty Eight which require that a Judge lives above reproach; that the evidence showing that the respondent Judge communicated with party litigants appearing before him in a case shows that his conduct was not beyond reproach and did not preserve the integrity of the court. The amici curiae most importantly referenced Canon Twelve for the Moral and Ethical Conduct of Judges in the Republic of Liberia which states: "A judge should not accept any presents or favors from litigants, or from lawyers practicing before him or from others whose interests are likely to be submitted to him for judgment", and the Judge himself admitted that he lied under oath that he was in contact with the complainant.

As to the second issue, the amici curiae stated that the respondent Judge who should uphold and keep the legal profession sacred, made false statements in his response to the complaint which he swore were true and correct, and thereafter lied under oath in his testimony to the Commission; that they strongly felt that the issue of bribery, even though not proven, because there was no evidence to corroborate the complainant's testimony, neither did the complainant prove any monetary transaction between him and the respondent Judge to prove that he did bribe the respondent Judge and same was accepted by him, however, the respondent judge having informed the commission under oath that, if the commission found any link between him and either the complainant or the plaintiff in the main suit via call records or otherwise, then, the respondent judge, was guilty of the allegations as contained in the complaint, the respondent judge subsequent concession to the record produced by the communication company and plea to the Commission for mercy was an admission in itself as to the truthfulness of the allegations as contained in the complainant's complaint.

The *amici curiae* therefore confirmed counts 1 and 2 of the penalties recommended by the JIC and count 1 of its recommendation.

This Court is grateful to these Counsellors who served as friends of the Court, especially for their insight and assistance which has helped to inform the Court's decision in this matter.

The Court having perused the records from the JIC investigative hearing, its findings and recommendations, and having duly considered the returns and brief filed by the respondent Judge before the Court, in addition to the advisory brief of the amici curiae, finds the following issues determinative of this case:

1. Whether a judge who makes false statements under oath is in violation of the Judicial Canons?
2. Whether a judge who maintains continuous communication with party litigants whose case is before said judge for disposition, and to the exclusion of the litigants' lawyers, is in violation of the Judicial Canons?
3. Whether the evidence adduced at the JIC hearing proved that the respondent Judge requested and received bribe, in violation of the Judicial Canons?

We will address the above issues in the order in which they have been raised above.

As stated supra, the JIC requires that those appearing before it for investigation and are called upon to make statements take an oath to speak the truth and nothing but the truth. In line with that requirement, Judge Klah appeared and took an oath to speak the truth and nothing but the truth, and not only did Judge Klah take an oath before the Commission when he appeared for the investigation, but he filed a sworn response to the complaint before the Commission. Notwithstanding the oath taken, the Judge denied in both his response to the complaint and in his statement before the Investigation that he knew the parties outside of their appearance before him in the debt action in which they were litigants and over which he presided; that at no time did he communicate with the parties via telephone. His latter admission that he did communicate with the parties only after the call logs were produced was in violation of our Criminal Law and Judicial Code of Ethics.

Our judicial system places emphasis on the act of one who deliberately makes false statements under oath and criminalizes such act, and those found guilty of commission of such act are amendable to criminal prosecution for perjury. The Criminal Statute § 12.30 *PERJURY*, reads:

"Offense. A person has committed perjury, a third degree felony, if, in official proceedings, he makes a false statement under oath or equivalent affirmation, or swears or affirms the truth of a false statement previously made, when the statement is material and he does not believe it to be true."

The records of the investigation reveal further that the complainant presented to the investigation a handwritten sheet of various withdrawals made from his bank account and sums allegedly paid to the Judge, and a printed SMS message that the complainant sent out to the Judge which reads as follows: "*U NEED TO TOTAL ALL THE MONEY U HAVE RECEIVED FROM ME N RETURN IT URGENTLY.*" The Commission decided these documents were self-serving in the

face of the Judge's denial that he knew the complainant personally, ever requested or received money from him to influence a decision in his favor as he had alleged, nor had a prior relationship with Mousa Karim, plaintiff in the complaint against the complainant; and that the complainant sought to besmear his (Judge Klah) character.

Based on the insistence of the complainant that the records from the phone company would substantiate his claim that the Judge had been dealing with him and his adverse party in a debt action while adjudicating the case between them, and that the Judge had solicited and received bribe to rule in his favor, the JIC agreed that records from the phone company would provide prima facie evidence of whether in fact the respondent Judge did communicate with the parties to the complaint as alleged; this need for the phone records was further heightened when the respondent Judge stated that if the call records (call log) requested by the Commission showed that he called either of them, then he was guilty.

The following is a question put to Judge Klah during the investigation and his answer to the question:

Counsellor Lynch: "Judge Klah, you said you have copies of the documents Mr. Fallah brought. What do you say?"

Judge Klah: "These are lies and fabrications; I wasn't here when the case was called. I saw him (complainant) for the last time when the garnishment petition was filed. Counsellor Lofen showed him to me, okay. I never called him or the other party; I didn't know them so I never called them. If the call records (call log) requested by the Commission show that I called him or either of them, then I am guilty." I became a lawyer to fight injustice, not to get rich. I play a key role in my family, I am not an irresponsible person...."

It was only when the call records were subpoenaed, testified to and confirmed by the appropriate personnel of Lonestar Cell (MTN) that the respondent Judge conceded that he did make calls to the party litigants to advise them to desist from calling him. Again, for the purpose of clarity, we quote below some relevant excerpts of the records evidencing the Judge's change of statements in these proceedings, as contained in the exchange between Judge Klah and the JIC Panel, recorded on Pages 11-12 of July 18, 2018 Minutes of the Hearing:

Sister Mary Laurene:

"Judge I am sitting down here wondering about your conscience; I mean how do you live with your conscience,

now that you have made mention of it? All along you have said that you didn't know this man (Fallah); that you didn't know Mousa and that he was not your friend. And you swore to everything sacred over and over that you have never ever called any one of them, neither had they called you; that you didn't have their numbers and that if the Commission got any evidence that you ever called or received calls from either of them the Commission should go ahead and make whatever decision it saw fit, because all that the complainant had said were complete lies, and you come here today yet making these long explanations in the wake of the evidence before us, which proved that you were not honest and that you lied to this Commission as a judge? And you have the audacity to talk to us about conscience? Judge please ...".

Judge Klah: Sister Laurene, I concede as the call records indicate that the both of us communicated with each other, which is clear. I am saying, I concede, please.

The minutes of July 18, 2018 is replete with admissions by the Judge that he lied under oath and his plea for mercy. We must emphatically state that lying under oath is both an issue of integrity and criminality and these vices do not resonate with the honor bestowed on the office of a judge. Our Judicial Canon lists eight cardinal judicial virtues, the third of which is the "virtue of dignity including a judge's sense of honor.

Regarding the second issue, the numerous calls made and messages sent by the Judge to the complainant and Mr. Karim and vice versa as outlined above amount to a direct violation of Judicial Canon Twenty-Four which forbids judges from engaging in private interviews, communicating with parties appearing before them with the intent of influencing their judicial actions.

Counsellor Laveli Supuwood, the lawyer of Mr. Karim, the plaintiff in the debt action, the case out of which the complaint emanated, and one of counsel for the respondent Judge, admitted before the Court that his client's interaction with the Judge was without his knowledge; that he knew nothing about the communication between them. The complainant also told the investigation that the respondent Judge told him not to inform his lawyer about their interaction. Hence, this conduct of the respondent Judge was in violation of Canon Twenty-Four, "EXPARTE COMMUNICATIONS".

This brings us to the final issue, whether or not the evidence adduced at the JIC hearing proved that the respondent Judge requested and received bribe to influence his decision in a matter he presided over and thereby in violation of the Judicial Canons?

In law, evidence may be direct or indirect. Direct evidence comes from a witness who saw or heard something that relates to the matter that is a subject of controversy. Indirect or circumstantial evidence, on the other hand, is a fact that can be used to infer another fact.

In keeping with the above, the respondent Judge's notion that the difficulty in deciphering the content of his many telephone communication with the complainant defeats the JIC's conclusion that he requested and received payments from Mr. Fallah is untenable. Bribery and other mischievous deeds are not carried out in the open. They are usually secret covenants between the parties involved. For this reason, most criminal convictions reached by courts are based on circumstantial evidence, although said evidence must be adequate to satisfy the due standards of proof. This Court has held that absent direct evidence, proof may be established where circumstances are so connected as to positively connect one element within another for a chain of evidence sufficient to lead the mind irresistibly to the conclusion that the accused committed the act that was alleged. See *Koffe v. Republic*, 20LLR18,20(1970); *Wion et al v RL*, 30 LLR 71,90 (1982); *Nat'l Africa First Pentecostal Church v. Davies et al*, Supreme Court Opinion March Term A.D. 2009, and kindred cases.

Taking recourse to the records transmitted to this Court by the JIC in consonance with the above settled principles of law, we find that the respondent Judge commenced his defense in these proceedings with falsehood and deception. For clarity, we refer to Count Two (2) of the Response he filed with the JIC to Mr. Fallah's complaint:

"As to paragraph Two (2) of the complaint alleging a conversation occurring between Mr. Fallah and me during the night of December 24, 2015, bordering on his alleged indebtedness to Mr. Mousa Abdul Karim, I submit this allegation is false, untrue and without any basis. I did not talk to Mr. Fallah as claimed because I did not know Mr. Fallah or Mr. Mousa Abdul Karim; had never met either of them and never had any such discussion with Mr. Fallah concerning his alleged indebtedness to Mr. Abdul Karim. Further, I maintain that I never had any prior knowledge or relationship with either of the parties and that I could not have held such a conversation as claimed on December 24, 2015 or on any subsequent date. For the record, the debt action was filed with the Commercial Court on January 20, 2016 when I was Out of the Country; it is, therefore absolutely false, misleading and a misrepresentation of the facts that I invited Mr. Fallah to my office for a conference concerning his alleged indebtedness to Mr. Abdul Karim."

Making further reference to the records of the JIC Hearing, The minutes of the sitting had on Wednesday, May 19, 2018, with Justice Philip A.Z. Banks, III, presiding, revealed that the respondent Judge went a step further in his denial

of the allegations levied against him by Mr. Fallah. In his response to a follow-up question posed by Counsellor Jura A. Lynch, a member of the Investigation Panel, the Judge stated that if the call logs requested by the Commission showed that he had had phone calls with either Mr. Fallah or Mr. Abdul Karim, then he was guilty. The records of the investigation of July 18, 2018, further reveal that when the call record was received and the evidence showed otherwise, the Judge in his continuous plea to the investigation requested a meeting with members of the JIC as follows:

Judge Klah " ... After the investigation today, I want to meet with the panel for just a few minutes,

Justice Banks: "Judge, this is an investigation to find facts. And I want to be clear for the record that this body is not meeting with you or the other party privately. Whatever it is that you want to say we will give you the opportunity to say it here, so you can go ahead."

Judge Klah: "Members of the Commission, I just want to say to you people that I am sorry, okay. I should have been open with you initially. First of all, I want to be honest and truthful as the data shows, the call records show that we were communicating with each other, it's true. I want to plead with you people that I am the bread winner of my entire family, okay. ..."

Rev. Emmanuel Bowier: "Well Judge, you should have thought about that. You should have thought about being the bread winner and those other things you are talking about before coming here and trying to make fool of us."

Circumstantial evidence is premised on inferences from established facts, such as, the multiple telephone calls and messages, the false statements made by the Judge, all of which constitute sufficient grounds for a reasonable mind to conclude that indeed bribery ensued in the case presided over by the Judge. The legal maxim **false in one, false in all**, is highly applicable in this case that because the Judge lied about the telephone communication, he also lied about requesting and receiving bribe as alleged. Had there been no motive behind the calls between the Judge and Mr. Fallah, the complainant, the Judge would have had no reason for denying that the calls were made. By this alone, we are persuaded that the complainant did make payments to the respondent Judge.

We are therefore inclined to agree with the conclusion reached by the JIC after its investigation that from the evidence deduced from the investigation, Judge Klah did receive some amounts from the complainant.

This Court having agreed with the JIC that the evidence leads to a clear inference that the Judge received bribe from the complainant promising to rule in his favor, we must therefore make a decision as to whether the penalty recommended by the JIC is adequate and appropriate for such violations of the Judicial Code of Ethics. Our Judicial Canon prescribes penalty for violators of the Canons as follows:

Canon Thirty-Nine - PENALTY

"The penalty for violation of any provision of the Judicial Canon shall be either fine, suspension, impeachment and/or prosecution in a court of law according to the gravity of the violation."

We note that while this Judicial Canon provides no guide for determining the gravity of a particular breach so as to warrant the imposition of either a suspension, fine, impeachment or prosecution in a court of law, the case laws developed under the Canons, however, suggest that each case of ethical breach involving a Judge is to be analyzed in its factual context in determining whether the conduct of said Judge was gross or not, and the corresponding punishment to be assessed in accordance with the Canon.

Having thoroughly reviewed the records of the JIC Hearing and found overwhelming evidence that the conduct of the respondent Judge is stained with perjury and bribery, and same being unthinkable vices that do not resonate with the high honor and dignity our society has placed on the Office of judgeship, there is compelling necessity to state that Judge Klah did not ordinarily breach the Judicial Canons; his alarming judicial misconduct amounts to a gross violation of the Canons.

The Judiciary since the end of our civil war has set out to build its image and therefore has placed emphasis in strengthening its ethical arms. Recent actions taken by the Court involving judges and lawyers based on reported misconduct and investigated by the JIC and Grievance and Ethics Committee have to an extent restored credibility in the Judiciary and has acted as deterrence to judicial misconduct. Under the facts and circumstance of this particular case, the respondent Judge's conduct is so repugnant and reprehensible that it brings to question his moral integrity and honesty to uphold the dignity of his elevated and exalted Office as Judge of the Commercial Court of the Republic of Liberia. His action has cast doubt on the fair and impartial administration of the law.

We therefore agree with the findings of the JIC that the respondent Judge be penalized, but modify the recommendation that the respondent Judge be suspended for not less than a year to forwarding his name to the Honorable House of Representatives to determine whether the acts he was found guilty of

amount to impeachable offenses. Meanwhile, the Chief Justice of the Supreme Court is hereby empowered to take the administrative action of informing Judge Richard S. Klah not to preside as an Associate Judge of the Commercial Court of Montserrado County to afford him the opportunity to defend himself at the Legislature.

We also affirm the recommendation of the JIC that the decision of the respondent Judge rendered in the debt action between the complainant, L. Swansey Fallah and Mousa Abdul Karim, be set aside and sent back to the Commercial Court for a new trial due to the gross unethical breach associated with the handling of the case.

The Clerk of this Court is ordered to write a letter to the Honorable Speaker of the House of Representatives, forwarding the name of His Honor Richard S. Klah along with a copy of this Opinion, Judgment and the records of the Judicial Inquiry Commission constituting the full records of the complaint and findings against Judge Klah. AND IT IS HEREBY SO ORDERED.